



Recitals

Recital 65 Right of rectification and erasure

A data subject should have the right to have personal data concerning him or her rectified and a 'right to be forgotten' where the retention of such data infringes this Regulation or Union or Member State law to which the controller is subject. In particular, a data subject should have the right to have his or her personal data erased and no longer processed where the personal data are no longer necessary in relation to the purposes for which they are collected or otherwise processed, where a data subject has withdrawn his or her consent or objects to the processing of personal data concerning him or her, or where the processing of his or her personal data does not otherwise comply with this Regulation. That right is relevant in particular where the data subject has given his or her consent as a child and is not fully aware of the risks involved by the processing, and later wants to remove such personal data, especially on the internet. The data subject should be able to exercise that right notwithstanding the fact that he or she is no longer a child. However, the further retention of the personal data should be lawful where it is necessary, for exercising the right of freedom of expression and information, for compliance with a legal obligation, for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller, on the grounds of public interest in the area of public health, for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes, or for the establishment, exercise or defence of legal claims.

About GDPR.EU

GDPR.EU is a website operated by Proton AG, which is co-funded by Project REP-791727-1 of the Horizon 2020 Framework Programme of the European Union. This is not an official EU Commission or Government resource. The europa.eu webpage concerning GDPR can be found [here](#). Nothing found in this portal constitutes legal advice.



[Home](#)

[Checklist](#)

[FAQ](#)

[GDPR](#)

[News & Updates](#)

[Data Processing Agreement >](#)

[Right to Erasure Request Form >](#)

[Privacy Policy >](#)

© 2026 Proton AG. All Rights Reserved.

[Terms and Conditions](#)

[Privacy Policy](#)



GDPR compliance is easier
with encrypted email

[Learn more >](#)